सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 Date: 17.10.2019

दिनांक 30.09.2019 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 30.09.2019

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 30.09.2019 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री विजय सिंह चौहान और श्री एस. अनंतकृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 30.09.2019 at 11.30 A.M. was presided over by Shri Vijay Singh Chauhan, Commissioner of Customs (General), ACC, Sahar and Shri S. Anantha Krishnan, Commissioner of Customs (Export), ACC, Sahar.

निम्नलिखित अधिकारियों वहितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नामवपद/Name & designation	संगठन/Organization
श्री म. के. सारंगी /Shri M. K. Sarangi, अपरआयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री तपन कुमार / Shri Tapan Kumar संयुक्तआयुक्त (आयात)/Jt. Commissioner (Export)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री दुर्गेश तिवारी/Shri Durgesh Tiwari उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री बी. के. मोहन्ती / Shri B. K. Mohanty सहायकआयुक्त, (जनरल)/Asst. Commissioner(General)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्रीएम एम खोलवादवाला/Shri M.M. Kholwadwala सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री विनोद नौटियाल/ Shri Vinod Nautiyal सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Ashok Satavase,,Shri Manoj Singh, Shri Mohmed Nasir,	MIAL (Custodian)
Shri Kaushal Thakkar, Sanjeev Harale, Ketan Desai Shri Paresh Sangani, , Shri Manish Shah	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Shri Vineet Agarwal, Shri Mohsin Chargania , Ms Chaitaly Mehta, Thomas Alvares	ACAAI
Ms. Sangeeta Dev	AIATSL
Shri Sameer Saxena	AIATSL
Mrs. Manita Churi	Asst Drug Controller
Shri Prasad G.	EK
NAVIN K.	EK
Shri Prasad Gengusetti	Emirates
Shri Sameer Vichare	Singapore Airlines
Shri C.A Veeramani Iyer	BCBA

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Commissioner of Customs (General) welcomed the members of trade, Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting and started the meeting. During the meeting following agenda points were discussed:

AGENDA POINTS FROM PREVIOUS MEETING :

1. Non Acceptance of cheques toward DO Charges -

It was stressed by the Trade representatives that suitable guidelines required from Customs to various Stakeholders like Airlines, Console Agents etc. to accept all modes of payments like Cheque/NEFT/RTGS etc. which will help in reducing the release time. Further, they informed that as per telephonic conversation with the Singapore airlines, they are now accepting Cheque towards payment of DO charges.

It was decided that given the Govt. of India's commitment for promoting electronic payments, Singapore Airlines and all other Airlines need to put in mechanism for electronic payments and communicate PTFC the timeline by which it will be completed.

Apprehension was raised by some Airlines about bouncing of Cheque due to insufficiency of funds etc., it was mentioned by the Commissioner (General) that such cases are offences which can be proceeded against the defaulting CBs and they should also be bought to the notice of the Commissioner (General) so that necessary action under CBLR rules can be initiated against defaulting parties.

(Issue Closed)

2. Timely refund of excess Custom Duty paid - Excess due to issue of double duty payment on account of EDI System:

In many cases the Importers end up paying duty twice due to EDI system issue. For refund of this duty, NOC from Pay and Account Officer (Customs) New Delhi is necessary. However, trade is facing difficulties in this regard as it takes months to get the NOC.

The Commissioner (General) has asked Trade representatives to find out the number of such cases happened in month and what is the reason/ at which stage it is delayed /blocked and raise it i.e. escalate the level if not paid within 3 months that it adhere to particular timeline.

(Issue Closed)

3. Re-assessment of EPCG Bill of Entry delaying the clearance process –

Trade facing difficulty while filing Bill of Entry under EPCG scheme where EPCG License has been registered at other locations. The ICES System asks for Bank Guarantee in case of such Bills of Entry. So such Bills of Entry are to be re-called and re-assessed to remove the BG amount from the Bill of Entry.

The Commissioner of Customs(General) asked to submit representation with screenshot of some of such Bills of Entry, so that issue can be taken up with DG System.

(Issue closed)

4. SVB bond to be filed online –

SVB bond has to be filed separately at each customs locations. Trade has requested for acceptance of single online SVB bond.

The Commissioner of Customs (Export) informed that this issue is already in planning stage.

(Issue Closed)

5 Unable to file the AEO certificate of the exporter in shipping bills -

It was informed that Exporters /Representatives are unable to load AEO certificate for export shipments.

The Commissioner of Customs (Export) assured that matter has taken up with DG (System) & reply awaited. Feedback will be given in next PTFC meeting.

(Issue closed)

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6.Need to register First Time Manufacturer/Exporter even though he has exported from other ports.

Public Notice no. 26/2019 dated 14.10.2019 issued in the matter.

(Issue Closed)

NEW AGENDA POINTS:

A) Topic related to " Pending SAD Refund Claims" by Commissioner of Customs (General) –

Commissioner (General) suggested for early reply from Trade/Importers to the Deficiency Memos sent by SAD Refund Department. If the reply to deficiency memos is not received within time limit, the Refund cases will be decided on the basis of available records. The Public Notice no.24/2019 dated 30.09.2019 has been issued in this regard.

(Issue Closed)

B) Points raised by BCBA –

1) Successful Implementation of TURANT – Sufficient manpower to be provided in Import Shed -

Trade has informed that for past 3 – 4 weeks, generation of OOC in import shed has been delayed considerably. It is suggested by trade that sufficient manpower be kindly provided in the import shed to ensure that maximum examination and OOC to be completed by 5.30 – 6.00 p.m. in the evening.

Assistant Commissioner (Import Shed) informed that since last few weeks due to ICES system related issues, work of out of charge is getting delayed. However, now situation has been normalized. There are ten Appraisers posted for out of charge in Import shed and they are working on it.

(Issue Closed)

2) Import deliveries round the clock -

Trade has requested to provide round the clock facilitation to trade. It is imperative that trade and industry at ACC Mumbai are provided import deliveries round the clock. With introduction of Turant, the timing for generation of OOC has been elongated, hence both the Custodians at ACC Mumbai should provide gate pass to ensure that import deliveries are affected for all the Out of Charges that are generated by Custom Authorities at least upto 10 pm.

The issue regarding the time till which Custodian shall allow the gate-out was discussed. It was recognized that ease of doing business should allow option for gate-out on the same day on which Customs Out of Charge/OOC is given. However it was acknowledged that the issue is complex and different agencies face their own challenges . It was decided to discuss the matter for an amicable solution and come back to PTFC in a later meeting .

(Issue Closed)

3) Bad Road Conditions –

The trade and industry are complaining about bad condition of roads for past 6 months. They requested Authorities to address the problem on top priority as handling of cargo for trade and industry at premier Air Cargo Complex of the country is getting inconvenienced.

MIAL has informed that due to heavy rains, repairing work of potholes on roads getting delayed. However they have already initiated the repairing work of roads and it will be completed within 10 days and there will be no potholes found by 15th October.

(Issue closed)

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4) **Facility for Requirements of Cheque payment demurrage charges to the custodian after banking hours** –

Trade is facing delay in clearance when their PD Account's funds are short to pay the demurrage charges. Payment of such demurrage charges are allowed by Cheque through the bank who is not working 24 x 7, in such situation, the custodian must arrange to accept the Cheque from the members of the trade. This facility can reduce the delay and cost to the trade members.

It was stated by the AIATSL that they are already accepting Cheque. Commissioner (General) clarified that all the CBs should maintain sufficient balance in PD accounts so that there will be no problem for payment of demurrage charges at late hours.

(Issue Closed)

5) **The custodian to accept the waiver in demurrage when the import consignment is granted waiver on late submission charges.** –

The Importers have to pay higher demurrage charges in various cases when their consignment is levied by the late fee charges and same is waived by the customs. The custodian need to grant the waiver in levy of demurrage charges when the customs has waived the late fee charge.

Commissioner (General) opines that the principle of 'waiver of demurrage charges since there is waiver of late BE filing charges' cannot be accepted as both are different triggers - delay in filing of BE is the problem at the end of trade or Customs and such action will affect rental income of both Custodians which is their basic income source.

(Issue Closed)

6) Airlines namely MALAYSIAN, EMIRATE, SINGAPORE, LUFTHANSA, KOREAN, UPS, BRITISH AIRWAYS, QATAR etc., are asking for payment via Demand Draft, this causes increase in delay and cost with demurrage charges on import consignment. We request the airlines to accept the Cheque or cash in addition to payment by DD, RTGS. This will help the trade members to avoid delay and can get their consignment timely cleared.

This Point has been already discussed in meeting. Electronic payment mechanism/ maintaining PD account will resolve the issue.

(Issue closed)

C) **Point raised by Airlines** –

1) **Ambiguity faced in weight of valuable Shipments** –
Representative from Emirates Airlines informed that there are incidences noticed where it is found that there is ambiguity found in weight of valuable shipments. There is need of installation of small weighing scale machines in strong rooms.

Commissioner (General) informed that it is mandatory job for Custodian to weigh the cargo. Hence all the custodians should Install small weighing scale immediately.

(Issue Closed)

D) **Points raised by ACCAI** –

1. **Recently there have been a lot of issues with CARR, wherein the details entered in the MIAL systems do not get transferred to the customs site. It has to be done multiple times.**

The Commissioner of Customs (Export) informed that this is system issue. He has asked members to submit representation with screenshot of some of such Shipping Bills, so that issue can be taken up with DG System.

(Issue Closed)

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2. **Handing over of Export cargo after LEO to AIATSL handled Airlines. It takes almost 2 hours for handing over. –**

New officer of AIATSL will identify the training needs of if any for newly posted officers and thereafter PTFC will be facilitated as platform to provide training to them.

(Issue Closed)

PTFC places on record the contribution of Sangeeta Dev from Air India and welcomes to Shri Sameer Saxena & expects him to do good work in future.

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यहस्थायीव्यापारसुविधाकमिटीकेअध्यक्षमहोदयआयुक्तमहोदय(आयात)औरआयुक्तमहोदय(निर्यात),अंचल-IIIकेअनुमोदनसेनिर्गतकियाजाताहै।

This issues with the approval of Commissioner of Customs (General) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

17/10/17.

(एम.के. सारंगी / M.K. SARANGI)
अपरआयुक्तसीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाईमालसंकुल,सहार,मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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